



8.008 Eligibility for Special Cases

CFR § 246.7(c) Eligibility Criteria and Basic Certification Procedure

I. Policy Statement

The State Agency must have a plan to provide Program benefits to unserved infants and children under the care of foster parents, protective services, or child welfare authorities, including infants exposed to drugs perinatally. Infants and children living with temporary caretakers, and minors (under age 18) seeking WIC services and benefits are also covered in this policy.

II. Children in Foster Care or Protective Services

Local Agencies shall provide WIC benefits to children in foster care or protective services who meet the eligibility criteria for the Program. The foster parent(s) with whom the child is placed must reside in the District of Columbia. The LA shall accept only official documents from the Department of Human Services, the Child and Family Services Agency, or other appropriate agency indicating that the child has been placed in their care. The child's monthly foster care stipend shall be used to determine income eligibility, not that of the foster parent(s). The child shall be considered a "family of one."

The foster care or protective services parent(s) shall be the AR(s) for the child participant, with all the rights and responsibilities assigned to that position.

Children in foster care who are residents of the District of Columbia, but have been placed in homes in Maryland, Virginia, or another state must apply for WIC benefits in that state.

Children in foster care who are residents of the District of Columbia and live in Maryland or Virginia, but receive primary health care in the District of Columbia may be served by DC WIC.

- a. A letter from the participant's doctor must be sent to the designated clinic prior to the delivery of WIC services.

Note: For changes in custody that take place during a valid certification period, see policy 8.012–Authorized Representatives.

LA Staff shall contact the State Agency for guidance in cases where custody is questioned or challenged by a biological parent.

Procedures:

1. Use the child's monthly foster care stipend to determine income eligibility – see policy 8.006 for more information
2. Verify and document the foster parent's identity and residency

III. Legal Guardians

LAs shall provide WIC benefits to children who reside with a legal guardian other than the parent and meet the eligibility criteria for the Program. The legal guardian with whom the child lives must reside in the District of Columbia and provide proof of residency. The legal guardian must prove that the child resides with them. This documentation must be a notarized statement from the court or an attorney, and must be scanned into the participant's HANDS record at the time of certification.



The child's income shall be used to determine income eligibility, not that of the legal guardian. The child shall be considered a "family of one." The legal guardian shall be the AR for the child participant, with all the rights and responsibilities assigned to that position.

Note: For changes in custody that take place during a valid certification period, see policy 8.012 – Authorized Representatives.

LA staff shall contact the State Agency for guidance in cases where custody is questioned or challenged by a biological parent.

Procedures:

1. Use the child's sources of income to determine income eligibility
2. Verify and document the legal guardian's identity, residency, and custody
3. Scan the legal guardian's custody documentation into the child's HANDS record

IV. Temporary Caretaker

LAs shall make every effort to provide WIC benefits to children who reside with a temporary caretaker and meet the eligibility criteria for the Program.

The temporary caretaker must provide documentation indicating that they are providing for the child due to the parent or legal guardian not being able to care for the child, and that the child is residing with the caretaker. Documentation must indicate the length of this arrangement and be one of the following:

- a. Notarized statement from the child's parent; OR
- b. Proof of a child's Medicaid, TANF, or SNAP benefits mailed in care of the caretaker; OR
- c. Written statement from a social service or health care agency to include (1) the name and address of the child, (2) the name, address, and telephone number of the caretaker, and (3) the length of time that the child will be in the care of the caretaker

The temporary caretaker with whom the child lives must reside in the District of Columbia and provide proof of residency. This child is not considered a foster child and shall be included in the family's eligibility determination. One month of food benefits shall be issued and eligibility shall be reassessed at the next appointment. The temporary caretaker shall be the AR for the child participant, with all the rights and responsibilities assigned to that position.

LA staff shall contact the State Agency for guidance in cases where custody is questioned or challenged by a biological parent.

Procedures

1. Obtain documentation that the temporary caretaker has legal custody of the child
2. Verify the identity and residency of the temporary caretaker
3. Use the child's source(s) of income to determine income eligibility



4. Scan the temporary caretaker's documentation of custody into the child's HANDS record

Note: If the temporary caretaker does not have documentation that the infant/child has been knowingly and willingly placed in their care by the court or the child's parent/legal guardian, staff may issue 1-month (30 days) of benefits. In this case, the temporary caretaker must sign the "Self-Declaration of Relationship to Minor" form and must provide appropriate documentation of custody – either legal custody or temporary custody - within 30 days, at which point the full certification can be completed and additional benefits issued. Add a staff alert in the participant's HANDS record that documentation of guardianship is needed. "Self-Declaration of Relationship to Minor" forms must be scanned into the infant/child's HANDS record.

Note: For changes in custody that take place during a valid certification period, see policy 8.012 – Authorized Representatives.

V. Ward of the District of Columbia

LAs shall provide WIC benefits to children who are "Wards of the District of Columbia" and reside in DC.

In situations where children in the DC foster care program are placed in homes in Maryland or Virginia, but receive primary health care in the District of Columbia they may be served by DC WIC. A letter from the participant's doctor must be sent to the designated service site prior to delivery of WIC services.

The same procedure for shall be followed for "Wards of the District of Columbia" as stated in section II of this Policy (Foster Children).

VI. Minors

LAs shall provide WIC benefits to applicants who are minors and meet the eligibility criteria.

A minor who is not receiving support from their family shall be considered a separate economic if they can provide documentation of majority of financial support for himself/herself.

A minor would be considered an "Emancipated minor" which is defined as any minor who is living separate and apart from their parent(s) or legal guardian, with or without the consent of the parent(s) or legal guardian and regardless of the duration of such separate residence, and who is managing his or her own personal and financial affairs, regardless of the source or extent of their income.

A minor shall be considered part of an economic unit other than their parent(s) if he/she shares income, and goods and services generated by that income with those persons.

LA Staff shall accept the standard proof of eligibility criteria, including exceptions for assessment of minors.

Contact the State Agency for guidance if there are questions concerning eligibility for WIC for an emancipated minor.



VII. Military Temporary Care of Friends/Relatives

LAs shall provide WIC benefits to children in temporary care of friends and/or relatives due to military obligations of their parent(s). The child's income shall be calculated based on the economic unit. The economic unit shall be determined by using one of the following:

- a. The child and their military parent(s) may be considered an economic unit and the gross pay of the parent(s) therefore determines the income. The caretaker must provide adequate documentation that the parent(s) is sending money to support the child(ren) and that this support is sufficient to provide for the majority of support.
- b. The child(ren) may be considered as a separate economic unit if the child's source of income provides the majority of support and it is adequate to sustain them as a separate economic unit. LA Staff shall use the monetary guidelines of the **Department of Human Services Foster Care Program** to determine the adequacy of the child's income.
- c. The child(ren) may be considered as part of the economic unit of the temporary caretaker with whom they reside - the gross pay of the temporary caretaker therefore determines the income.

Staff shall consider all sources of income for military families, except those excluded in Policy 8.006. The LA shall accept standard proof of income documentation, including exceptions, for military families listed in Policy 8.006. LAs shall consider the past 12 months of income for a military family whose income temporarily increases due to short-term hazardous duty, combat or other temporary situations. The current rate of income shall be considered when a military family's income decreases due to a temporary situation.

Military families are eligible for DC WIC if they physically live in the District of Columbia, but do not have to be residents of the District of Columbia.



Table 1. Summary of Special Cases Documentation and Certification Lengths

Situation	Documentation Required	Certification Length
No documentation of legal guardianship / temporary placement	Signed “Self-Declaration of Relationship to Minor” form	30 days AR must follow up with appropriate documentation of legal guardianship or temporary custody
Legal Guardian	Notarized statement from court or attorney	Full certification
Temporary Caretaker	Notarized statement from court or legal guardian; OR Proof of a child’s Medicaid, TANF, or SNAP benefits mailed in care of the caretaker	Full Certification
	Written statement from a social service or health care agency to include: 1. Child’s name and address 2. Caretaker’s name, address, phone number 3. Length of time the child will be in the care of the caretaker This can include “Safety Plans” from CFSA, provided the above information is included.	The length of the caretaker’s arrangement, at which point the caretaker can provide documentation of extension or change in status to legal guardian, or the new guardian will need to provide their information and appropriate documentation.
Foster Care or Protective Services	Paperwork from appropriate Government agency.	Full certification
Ward of the District	Paperwork from appropriate Government agency. Letter from child’s healthcare provider if guardians live outside DC.	Full certification

Note: See policy 8.012 – Authorized Representatives, for procedures on updating an infant or child’s primary AR during a certification period, in cases when there is a change of legal guardianship or custody.